

Indictable Offences in Victoria
Evidence
Coincidence and tendency evidence
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13 Coincidence and tendency evidence

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[13.10] General principles

[Sections 97](#) and [98 of the *Evidence Act 2008*](#) replace the common law concept of propensity evidence with the “tendency rule”, and the “similar fact rule” with the “coincidence rule”.

[Section 97\(1\)\(b\)](#) excludes evidence of the character, reputation or conduct of a person to prove that the person has or had a tendency to act in a particular way or to have a particular state of mind (“tendency evidence”) unless the court thinks that the tendency evidence will have “significant probative value”, either by itself or having regard to other evidence adduced or to be adduced by the *party* seeking to adduce the evidence.

Section 98(1) provides that evidence that two or more events occurred is not admissible to prove that a person did a particular act or had a particular state of mind on the basis that, having regard to any similarities in the events or the circumstances in which they occurred, or any similarities in both the events and the circumstances in which they occurred, it is improbable that the events occurred coincidentally unless:

- (a) the *party* seeking to adduce the evidence gave reasonable notice in writing to each other *party* of the *party's* intention to adduce the evidence; and
- (b) the court thinks that the evidence will, either by itself or having regard to other evidence adduced or to be adduced by the *party* seeking to adduce the evidence, have significant probative value.

Kiefel CJ, Bell, Keane and Edelman JJ in *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 52; 264 A Crim R 225; [2017] HCA 20 at [17] observed that:

The reception of tendency evidence in a criminal trial may occasion prejudice in a number of ways. The jury may fail to allow that a person who has a tendency to have a particular state of mind, or to act in a particular way, may not have had that state of mind, or may not have acted in that way, on the occasion in issue. Or the jury may underestimate the number of persons who share the tendency to have that state of mind or to act in that way. In either case the tendency evidence may be given disproportionate weight. In addition to the risks arising from tendency reasoning, there is the risk that the assessment of whether the prosecution has discharged its onus may be clouded by the jury's emotional response to the tendency evidence. And prejudice may be occasioned by requiring an accused to answer a raft of uncharged conduct stretching back, perhaps, over many years.

This, and associated issues in relation to coincidence evidence, influence decision-making about admissibility in relation to both forms of evidence.

While there is a degree of overlap between tendency and coincidence evidence, the reasoning used by a jury to infer a fact in issue differs for each type of evidence:

- in coincidence reasoning, a jury relies on the improbability of events occurring other than in the way suggested which reveals a pattern from which it may be inferred that the accused performed a particular act or had a particular state of mind. For example, a jury may find that events which seemed accidental or coincidental were, in fact, criminal, such as *Makin v Attorney-General (NSW)* [1894] AC 57 (12 other babies found buried in the backyard), *R v Smith* (1915) 11 Cr App R 229 (the “brides in the bath” case), or that it is improbable that two or more witnesses giving an account regarding the conduct of the accused is a coincidence, such as *R v Boardman* [1975] AC 421 and *Hoch v The Queen* (1988) 165 CLR 292; 62 ALJR 582; 35 A Crim R 47; [1988] HCA 50.

- tendency evidence allows the jury to reason that “he did it before; he has a propensity to do this sort of thing; the likelihood is that he did it again on the occasion in issue”: *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 52; 264 A Crim R 225; [2017] HCA 20 at [70] per Gageler J.

The differences between tendency and coincidence evidence are also set out in *Bauer v The Queen* [2015] VSCA 55. At [132], as follows:

... Both [tendency and coincidence] seem to be underpinned by the notion that human behaviour occurs in patterns. Hence tendency reasoning carries with it the idea that because a person has acted in a particular way in the past, he or she will act in a particular way, or possess a particular state of mind, in the future. On the other hand, coincidence reasoning uses similarities in behaviour to prove that a person was responsible for it.

[13.20] Threshold of admissibility

Tendency or coincidence evidence about an accused that is adduced by the prosecution cannot be used against the accused unless the probative value of the evidence substantially outweighs any prejudicial effect it may have on the accused: s 101(2). Additionally, proper notice must be given: see [13.70] “Notices”.

In *Director of Public Prosecutions v Roder* (2024) 98 ALJR 644; [2024] HCA 15 it was noted that in Victoria, in order for tendency evidence to be admitted, there is no need for it to be established reasonable doubt. The High Court stated that:

[37] [In] ...Victoria, the primary point of reference for determining the content of the appropriate directions in relation to tendency evidence is the Jury Directions Act. That said, it follows from the nature of tendency evidence that, in a case where the prosecution relies on both uncharged and charged acts to establish an alleged tendency of the kind under consideration here, a single separate tendency direction should ordinarily be given. Such a direction should not direct or invite the jury to make findings in respect of charged conduct, but instead should indicate the evidence relied on to support the alleged tendency, direct the jury to consider whether they are satisfied of the alleged tendency and then advise the jury that, if they are so satisfied, they can use that tendency in considering whether it is more likely that the accused committed the specific offences with which he or she is charged. Careful directions should be given to the jury as to the requisite onus and standard of proof as well as to the contents of the elements of the offence and the need for separate consideration of each charge.

[13.30] Similarity

Under s 98(1), coincidence evidence must establish the occurrence of two or more events which show similarities to the conduct presently before the courts such that it is improbable that the events occurred coincidentally. To qualify as a relevant similarity there will often need to be “something distinctive” about the way in which the accused allegedly took advantage of the setting or the context: *PNJ v Director of Public Prosecutions* (2010) 27 VR 146; [2010] VSCA 88 at [20], or a special, particular or unusual feature (see *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; [2016] HCA 14; *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20).

The admissibility of tendency evidence under s 97 is not conditional upon similarities with the conduct presently before the courts except in certain limited circumstances: *R v Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40. However, the assessment of whether evidence has significant probative value in relation to each count involves consideration of two interrelated but separate matters:

- the extent to which the evidence supports the tendency; and
- the extent to which the tendency makes more likely the facts making up the charged offence: *Hughes v the Queen* (2017) 263 CLR 338; 92 ALJR 52; 264 A Crim R 225; [2017] HCA 20 at [41].

Where the question is not one of the identity of a known offender but is instead a question concerning whether the offence was committed, it is important to consider both matters:

By seeing that there are two matters involved it is easier to appreciate the dangers in focusing on single labels such as “underlying unity”, “pattern of conduct” or “modus operandi”. In summary, there is likely to be a high degree of probative value where (i) the evidence, by itself or together with other evidence, strongly supports proof of a tendency, and (ii) the tendency strongly supports the proof of a fact that makes up the offence charged.

(*Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20 at [41]).

In *R v Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40 at [48], the High Court unanimously set out a broader rule of admissibility in cases where there is a single complainant and a course of offending of generally similar sexual acts along with a series of uncharged acts:

Henceforth, it should be understood that a complainant's evidence of an accused's uncharged acts in relation to him or her (including acts which, although not themselves necessarily criminal offences, are probative of the existence of the accused having had a sexual interest in the complainant on which the accused has acted) may be admissible as tendency evidence

in proof of sexual offences which the accused is alleged to have committed against that complainant whether or not the uncharged acts have about them some special feature of the kind mentioned in *IMM* or exhibit a special, particular or unusual feature of the kind described in *Hughes*.

The decision in *Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40 significantly confines the earlier decisions in *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; [2016] HCA 14 and *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20. Where the prosecutor seeks to rely on a single uncharged act of significantly different gravity, as in *IMM* (2016) 257 CLR 300; 90 ALJR 529; [2016] HCA 14, the prosecutor will need to point to “special features” (such as the degree of similarity between the conduct, or the degree of similarity of the circumstances surrounding the conduct) to show that the evidence has significant probative value: *R v Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40 at [53]. See, also, *McPhillamy v The Queen* (2018) 92 ALJR 1045; 361 ALR 13; [2018] HCA 52 at [26], [27], [30]–[32].

In commenting on the significance of *Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40, the Victorian Court of Appeal in *Harris v The King* [2024] VSCA 43 stated:

[70] In *Bauer*, the High Court drew a distinction between single-complainant and multiple-complainant cases. In relation to the former, the tendency is built on a sexual attraction to a particular person, being an attraction that would apply equally in different contexts. In relation to the latter, there must be some common feature or link.

In cases where there are multiple complainants, as in *Hughes* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20, the prosecutor will need to point to “special, particular or unusual features” (in *Hughes* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20, brazen offending despite the risk of discovery) in order to link the cases involving different complainants: *R v Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40 at [56]–[58].

In *TL v The King* (2022) 96 ALJR 1072; [2022] HCA 35 the High Court lowered the bar regarding the admissibility of tendency evidence pursuant to s 97 of the *Evidence Act 1995* (NSW) where the issue at trial is identity and there is other evidence implicating the accused. In this case, the High Court dismissed an appeal from the New South Wales Court of Criminal Appeal from an appellant who was convicted of murdering his two year-old stepdaughter by inflicting forceful blows to her abdomen. The evidence disclosed that one of only three people had the opportunity to inflict the injuries. At trial, the prosecution alleged that the appellant had the tendency to “deliberately inflict physical harm on the child”. Pursuant to s 97 of the *Uniform Evidence Act*, the prosecution tendered two items of evidence to establish this tendency. The first item of evidence was burns

sustained by the victim as a result of the appellant placing her in scalding hot water 10 days before she was killed. The second item of evidence were statements made by the victim to her relatives that the appellant had previously hurt and punched her and a text message by the victim's mother to the appellant that the victim said he hurt her neck again.

In dismissing the appeal, the High Court clarified the comment in *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20 that when tendency evidence is admitted to establish the identity of the offender “the probative value of tendency evidence will almost certainly depend upon close similarity between the conduct evidencing the tendency and the offence”.

To this end, the Court stated at [37]–[38]:

In this case, the issue is whether the tendency evidence could rationally make it more likely, to a significant extent, that the appellant inflicted the blunt force trauma (or, conversely, make it more likely, to a significant extent, that the mother and the nephew did not inflict the blunt force trauma). As in *Hughes*, that question requires consideration of two interrelated but separate matters: (1) the extent to which the evidence supports the asserted tendency; and (2) the extent to which the asserted tendency makes more likely the fact or facts sought to be proved by the evidence [36]. This is a case in which the threshold of significant probative value was capable of being met without the close similarity insisted upon by the appellant. Apart from the burns and complaint evidence, there was strong evidence identifying the appellant as the perpetrator. First, there was evidence that the appellant was one of only three people with the requisite opportunity. Second, as explained above, the appellant was the only person who had an opportunity to inflict the fatal injuries when the others were not present, either in the unit or immediately outside the open window to the victim's bedroom. Third, there was evidence that tended to exclude the mother and the nephew as the perpetrator. ...

Thus, the High Court has refined the test for the admissibility of tendency evidence which relates to establishing the identity of the offender. When there is other evidence that independently supports that contention that the accused is the offender, greater latitude is accorded relating to the extent of the closeness of the similarity between the conduct evidencing the tendency and the offence in order for the evidence to satisfy the admissibility threshold.

In *McPhillamy v The Queen* (2018) 92 ALJR 1045; [2018] HCA 52) the High Court again considered the admissibility of tendency evidence pursuant to s 97 of the *Evidence Act 1995* (NSW). The court allowed an appeal from the New South Wales Court of Criminal Appeal and, in doing so, quashed six convictions against the accused for sexual offences committed between 1995 and 1996 in relation to the complainant, who at the time was 11 years old. The complainant was an altar boy, and the appellant was supervising him in his capacity as an acolyte. The disputed evidence was from two witnesses who stated that in 1985 (when they were about 13 years old) they

were sexually abused by the appellant when they were boarding at a school at which the appellant was a housemaster. This was admitted at trial as tendency evidence which demonstrated that the appellant had a sexual interest in boys who were under his supervision. The plurality held that this evidence did not overcome the threshold of being of significant probative value because it merely showed that, 10 years prior to the alleged offences, the appellant sexually abused two young boys but did not demonstrate a tendency relating to the complainant.

In *Feng v The King* [2023] VSCA 196, the Court, at [47]–[48], in emphasising the importance of stipulating the purpose for which coincidence evidence is being admitted (to establish identity; the commission of the act or for credibility) provided the following useful overview regarding the operation of s 98 (adopting the views expressed in *CV v Director of Public Prosecutions* [2014] VSCA 58, [9]–[11]):

[9] Although coincidence reasoning – the improbability that different events occurred coincidentally having regard to the similarities in the events or in the circumstances in which they occurred – owes its origins to similar fact reasoning at common law, which required the evidence to possess “striking similarity”, it is not necessary that the evidence possess that specific characteristic. The probative value of evidence may not lie in it displaying a “striking similarity”, “system” or “pattern”, all of which might require the identification of points of similarity or in there being an “underlying unity” in the events relied upon.[16] ...

[10] There may be such a relationship between the events in purpose, circumstances and mode of conduct that coincidence reasoning will be open. The necessary relationship is not confined to events, each of which possesses unusual characteristics in its execution. The evidence of each may provide strong support for the others, making it just to admit them all notwithstanding the prejudicial effect of admitting the evidence.

[11] The cogency and significance of the events or the surrounding circumstances will depend on the issue to be proved, as well as on the nature of the evidence. The issue may be whether a particular person committed the acts, whether the acts were committed at all, or the state of mind of the person performing the acts.

[13.40] Significant probative value

The Dictionary to the *Evidence Act 2008* defines the probative value of evidence as “the extent to which the evidence could rationally affect the assessment of the probability of the existence of a fact in issue”. The probative value of evidence is a determination to be undertaken taking the evidence at its highest: *R v Bauer* (2018) 92 ALJR 846; 271 A Crim R 558; 359 ALR 359; [2018] HCA 40 at [69].

The High Court in *R v Bauer* (2018) 266 CLR 56; 92 ALJR 846; 271 A Crim R 558; [2018] HCA 40 held, at [62], that:

[T]he “very high probative value” and thus admissibility of the evidence of each charged and uncharged act rested on the logic that, where a person is sexually attracted to another and has acted upon that attraction by engaging in sexual acts with him or her, the person is the more likely to seek to continue to give effect to the attraction by engaging in further sexual acts with the other person as the opportunity presents.

The majority in *Hughes v The Queen* (2017) 263 CLR 338; 92 ALJR 92; 264 A Crim R 225; [2017] HCA 20 observed, at [42], that “unlike the common law which preceded s 97(1)(b), the statutory words do not permit a restrictive approach to whether probative value is significant”, and held that an assessment of probative value is a twofold “open-textured, evaluative task” requiring application of “the same well-known principles of logic and human experience as are used in an assessment of whether evidence is relevant”:

1. the extent to which the evidence supports the tendency;
2. “the extent to which the tendency makes more likely the facts making up the charged offence”.

[13.50] Prejudicial effect

Prejudicial effect in this context has been held to mean “the risk that, despite appropriate directions, the jury may reason improperly from the fact that the accused had committed previous offences, that he is the kind of person who would have committed the subject offences”: *GBF v The Queen* [2010] VSCA 135 at [30]. In *R v Ford* (2009) 201 A Crim R 451; 273 ALR 286; [2009] NSWCCA 306 at [56] Campbell JA observed that the unfair prejudice referred to in s 137 is “harm to the interests of the accused that is unfair because there is a real risk that the evidence will be misused by the jury in some unfair way”, for instance by provoking some irrational, emotional or illogical response or by giving the evidence more weight than it truly deserves: see *R v Suteski* (2002) 56 NSWLR 182; 137 A Crim R 371; [2002] NSWCCA 509 at [116] per Wood CJ at CL (with whom Sully and Howie JJ agreed).

More recently, in *ABR v The Queen* [2020] NSWCCA 33 at [37], the approach to determining the level of prejudice associated with tendency evidence is set out as follows:

The prejudice with which [s 101(2)] it is concerned is the risk that evidence will be misused by the jury in an unfair manner, such as by provoking some irrational, emotional or illogical response: see *Bauer* at [73]. In deciding whether the probative value of the evidence substantially outweighs any such prejudicial effect the court may take into account the “ameliorating effect” of any directions that may be available: see *Dao v R* (2011) 81

NSWLR 568; [2011] NSWCCA 63 at [171] (Simpson J); *BC v R* [2015] NSWCCA 327 at [110] (Beech-Jones J, Simpson JA agreeing); [2015] NSWCCA 327; (2015) 257 A Crim R 340. A further consideration is whether there is a real risk that notwithstanding directions given to the jury, they would nevertheless proceed to misuse the evidence on the basis that the applicant “was not deserving of the benefit of any reasonable doubt”: see *Sokolowsky v R* [2014] NSWCCA 55 at [56] (Hoeben CJ at CL); (2014) 239 A Crim R 528.

In *Erickson v The Queen* [2021] VSCA 234 it was held that the pornographic images taken by an accused of a victim were not admissible pursuant to s 97 due to prejudice they would engender against that accused. However, in *Director of Public Prosecutions (Vic) v Pearson* [2021] VSCA 336 a less strict approach was taken to the admissibility of evidence depicting the accused in a negative manner. The Court stated that the possibility of emotional response by jury eliciting a bias against a defendant as a result of past criminal acts should not lead to the exclusion of the tendency evidence, given that often jury directions can negate this possibility.

[13.60] Substantially outweighs

It has been held that the degree to which the probative value outweighs the prejudicial effect is required to be substantial. In this regard, “substantial” is used to mean “large, weighty or big” and indicates an “absolute significance”: *R v Fletcher* (2005) 156 A Crim R 308; [2005] NSWCCA 338 at [119]; *Tillmanns Butcheries Pty Ltd v AMIEU* (1979) 42 FLR 331; see too *R v Ellis* (2003) 58 NSWLR 700; 144 A Crim R 1; [2003] NSWCCA 319 at [94]–[95].

[13.70] Notices

Regulation 8 of the *Evidence Regulations 2019* prescribes the matters which notices given under ss 97 and 98 must include: the substance of the evidence intended to be adduced, the date, time, place and the circumstances in which the conduct or events occurred, and the names of witnesses to the conduct or event. Failure to comply with this has the potential to result in a determination of inadmissibility: *R v AN* (2000) 117 A Crim R 176; [2000] NSWCCA 372 at [60] – [62] per Kirby J (Priestley JA and James J agreeing).

Regulation 8 relevantly states:

For the purposes of s 99 of the Act, a notice given under section 97(1)(a) of the Act (relating to the tendency rule) must state—

- (a) the substance of the evidence that the notifying party intends to adduce; and
- (b) if that evidence consists of, or includes, evidence of the conduct of a person, particulars of—
 - (i) the date, time and place at and the circumstances in which the conduct occurred; and

- (ii) the name of each person who saw, heard or otherwise perceived the conduct...
- (2) For the purposes of section 99 of the Act, a notice given under [section 98\(1\)\(a\)](#) of the Act (relating to the coincidence rule) must state—
 - (a) the substance of the evidence of the occurrence of 2 or more events that the party giving the notice intends to adduce; and
 - (b) particulars of—
 - (i) the date, time and place at and the circumstances in which each of those events occurred; and
 - (ii) the name of each person who saw, heard or otherwise perceived each of those events ...;

[13.80] Concoction, collusion, collaboration and contamination

The High Court has held in *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; [2016] HCA 14 at [44] and confirmed in *R v Bauer* (2018) 266 CLR 56; 92 ALJR 846; 271 A Crim R 558; [2018] HCA 40 at [69] (citations omitted) that the probative value of evidence:

is a determination to be undertaken taking the evidence at its highest. Accordingly, unless the risk of contamination, concoction or collusion is so great that it would not be open to the jury rationally to accept the evidence, the determination of probative value excludes consideration of credibility and reliability. Subject to that exception, the risk of contamination, concoction or collusion goes only to the credibility and reliability of evidence and, therefore, is an assessment which must be left to the jury.

[13.90] Credibility rule

[Section 102 of the Evidence Act 2008](#) provides that evidence that is relevant only to a witness's credibility is not admissible. The term “credibility of a witness” is defined in Pt 1 of the Dictionary:

the credibility of any part or all of the evidence of the witness, and includes the witness's ability to observe or remember facts and events about which the witness has given, is giving or is to give evidence.

See further Odgers S, *Uniform Evidence Law* (Thomson Reuters, subscription service) at [\[EA.102.30\]](#) ff; and Freckelton I (ed), *Criminal Law, Investigation and Procedure Victoria* (Thomson Reuters, subscription service) at [\[EA.PT3.7.20\]](#).

[13.100] Important references

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